

		false accusations of sexual assault, and threats regarding the custody of Plaintiff's daughter). Given the above, the Motion to Expunge Lis Pendens is DENIED. Defendant's alternative request for an undertaking is DENIED as this time. (Code Civ. Proc., §§ 405.32 and 405.33.) Plaintiff to give notice.
103	Castellanos v. PHH Mortgage, 2026-01563843	DEMURRER – SUSTAINED WITH 20 DAYS LEAVE TO AMEND Defendants Onity Mortgage Corporation (formerly known as PHH Mortgage Corporation) and Deutsche Bank National Trust Company demur to the complaint filed by Plaintiff Richard Castellanos. Defendants' Request for Judicial Notice is GRANTED, pursuant to Evidence Code section 452, subdivision (h). (Poseidon Development, Inc. v. Woodland Lane States, LLC (2007) 152 Cal.App.4th 1106, 1117.) The First and Second Causes of Action for violations of Civil Code sections 2923.5 and 2924.9 are barred by the statute of limitations. Plaintiff alleges a violation of both of the above provisions, as "plaintiff received no mail or messages from Defendant," either prior to the Notice of Default being recorded or within 5-days thereof. (¶19 and ¶24-¶25 of Complaint.) Both claims are subject to a 3-year statute of limitation, as they are "action[s] upon a liability created by statute, other than a penalty or forfeiture." (Code Civ. Proc., § 338(a).) Defendants assert that both claims are barred, as the relevant Notice of Default was recorded on October 31, 2022 (See ¶13 of Complaint and Exhibit D thereto; See also Exhibit 4 of RJN), more than 3 years before this action was initiated on April 20, 2026.

		A demurrer based on the statute of limitations will not lie where the action may be, but is not necessarily, barred. (See <i>Boy Scouts of America Nat. Foundation v. Superior Court</i> (2012) 206 Cal.App.4th 428, 438.) Plaintiff asserts the above ambiguity requires the demurrer be overruled. “In order for the bar to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint.” (Id. at 438-439). The allegations in the Complaint conflict as to the correct date. (Compare ¶13 [Notice of Default was recorded on October 31, 2022] with ¶¶19, ¶23 [Notice of Default was recorded on October 31, 2025].) Exhibit D to the Complaint establishes the correct date is October 31, 2022. “While the ‘allegations [of a complaint] must be accepted as true for purposes of demurrer,’ the ‘facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary to the allegations in the pleading, will be given precedence.’” (<i>Moran v. Prime Healthcare Management, Inc.</i> (2016) 3 Cal.App.5th 1131, 1145-1146.) On the Fourth Cause of Action for Wrongful Foreclosure, a required element is that “the trustor or mortgagor the amount of the secured indebtedness or was excused from tendering.” (<i>Lona v. Citibank, N.A.</i> (2011) 202 Cal.App.4th 89, 104.) While it is true that “[a] tender may not be required where it would be inequitable to do so” (<i>Onofrio v. Rice</i> (1997) 55 Cal.App.4th 413, 424), Plaintiff’s only offered explanation, as to why this exception applies herein, is Defendants’ alleged failure to comply with the foreclosure-alternative notice requirements, stated within Civil Code sections 2923.5 and 2924.9. (See Opposition: 5:9-17; See also ¶61 of Complaint.) Given the identified violations of Civil Code section 2923.5 and 2924.9 are time barred, the Court finds the above allegation insufficient to state a claim. Plaintiff has not alleged facts which demonstrate that requiring tender in this case would be inequitable.
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		Lastly, Plaintiff brings a claim for unfair competition, pursuant to Business & Professions Code section 17200, which prohibits “any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising....” (Bus. & Prof. Code, § 17200.) “Where a UCL Claim is derivative of another claim that fails as a matter of law, the UCL claim must similarly fail.” (Nein v. HostPro, Inc. (2009) 174 Cal.App.4th 833, 841.) Defendants demur to the Third Cause of Action, on the basis it is derivative of all remaining claims. (Demurrer: 7:2-4.) In response, Plaintiff concedes the derivative nature of this claim, but nonetheless asserts that “the first, second, and fourth causes of action are not shown to be barred as a matter of law on the face of this Complaint....” (Opposition: 6:3-7.) As the Court has sustained the demurrer to all remaining claims, the demurrer is likewise sustained, as to this derivative claim. While Plaintiff has not specified how he will amend to state a claim and, in particular, has not identified a legal basis for avoiding the statute of limitations, leave to amend is GRANTED, as this is his first attempt at pleading. (See Tarrar Enterprises, Inc. v. Associated Indemnity Corp. (2022) 83 Cal.App.5th 685, 688; See also Amy’s Kitchen, Inc. v. Fireman’s Fund Ins. Co. (2022) 83 Cal.App.5th 1062, 1073.)
104	Craig v. SageKitchen, LLC, 2025-01526209	MOTION TO COMPEL ARBITRATION TENTATIVE FORTHCOMING
105	Elias v. Jensen, 2020-01139897	MOTION FOR RECONSIDERATION – CONTINUED On July 28, 2026, Defendants filed a Motion for Order Requiring Plaintiff to Furnish Security Pursuant to Vexatious Litigant Statute. Pursuant to CCP §391.6, the filing of this motion automatically stays the entirety of the action until a specified time after the motion is heard.